

between the cases of real estate and personal estate; and so realty appointed under a general power to trustees for purposes which fail will result to the appointor and go as part of his realty (*c*). But where the appointment is made directly to the person intended to be beneficially interested without the interposition of any trustee, on the death of the appointee in the lifetime of the donee of the power the appointment wholly fails, and the appointed funds will revert to the persons entitled in default of appointment (*d*).]

Fourthly. In a gift of the whole, subject to a charge that may not arise, no trust results.—It often happens, that the settlor makes a primary disposition of the *whole* property to A. subject to a particular charge in favour of B., and the charge in event either wholly or partially fails so as either not to divest, or only *pro tanto* to divest the estate of A. The reader must distinguish the preceding cases of resulting trust from such a gift as this; for here, as the entirety is disposed of in the first instance to A., so far as the charge does not exhaust it, there can nothing result to the heir, even should the charge not take effect. The distinction was thus stated by Sir J. Leach:—*“If the devise,” he said, [*154] “to a particular person, or for a particular purpose, be intended by the testator to be an exception from the gift to the residuary devisee, the heir takes the benefit of the failure; but if it be intended to be a charge only upon the estate devised, and not an exception from the gift, the devisee will be entitled to the benefit of the failure” (*a*).

Eq. 310; [Wilkinson v. Schneider, 9 L. R. Eq. 423; *Re Pinède's Settlement*, 12 Ch. D. 667; *Re Ickeringill's Estate*, 17 Ch. D. 151; *Rous v. Jackson*, 29 Ch. D. 521; *Re Horton*, 51 L. T. N. S. 420.] *Chamberlain v. Hutchinson*, 22 Beav. 444; *Mansell v. Price*, Sug. Powers. Appendix. [“In all cases of this class the question is one of intention, namely, whether the donee of the power meant by the exercise of it to take the property dealt with out of the instrument creating the power for all purposes or only for the limited purpose of giving effect to the partic-

ular disposition expressed” *per* V. C. I. *Re De Lusi's Trusts*, 3 L. R. Ir. 232, 237, approved by M. R. *Re Pinède's Settlement*, *ubi sup.*; *Re Van Hagan*, 16 Ch. D. 18; *Willoughby Osborne v. Holyoake*, 22 Ch. D. 238.]

[(*c*) *Re Van Hagan*, 16 Ch. D. 18.]

[(*d*) *Re Davies' Trusts*, 13 L. R. Eq. 163; *Re De Lusi's Trusts*, 3 L. R. Ir. 232.]

(*a*) *Cooke v. The Stationers' Company*, 3 M. & K. 264.